

		of others” according to the jury in <i>Roby</i>. Further, given that Plaintiff alleges that he was terminated for requesting a medical accommodation and for perceived filing of workers’ compensation, a jury could reasonably infer that Defendant terminated Plaintiff in retaliation for Plaintiff’s exercising his rights—i.e., conduct for which a jury found was oppressive under <i>Wysinger</i>. As such, Plaintiff has sufficiently pled “the ultimate facts showing an entitlement to [punitive damages.]” (<i>Clauson, supra</i>, 67 Cal. App. 4th at p. 1255.) The motion is therefore DENIED. Moving Defendant to give notice.
10	Lampley v. Hermosa 2019 LP	The court has been made aware that Plaintiff is now deceased. A deceased individual has no legal existence. (See <i>Tanner v. Best’s Estate</i> (1940) 40 Cal.App.2d 442, 444-445 [holding that judgment could not be entered against the “estate” of a decedent, as the “estate” “is neither a natural nor artificial person [but rather] merely a name to indicate the sum total of the assets and liabilities of a decedent”]; see also Code Civ. Proc., §§ 377.40 <i>et seq.</i> [governing claims against decedents]. Therefore, proceedings are suspended indefinitely pending appointment of a personal representative of decedent/plaintiff per CCP 385. In the case of a self-represented plaintiff, if no personal representative is appointed, the case cannot proceed until such a representative is substituted. The court must suspend all further proceedings until the executors or administrators are qualified and substituted as parties (Matter of Estate of Page, 50 Cal. 40 (1875))[4]. If the deceased plaintiff’s estate has a personal representative, that representative can continue the action on behalf of the estate (Adams v. Superior Court, 196 Cal.App.4th 71 (2011))[5]. Status conference shall occur on December 11, 2025, at 9:00 a.m. in this department. The moving party to give notice.
11	Mass v. CTG Auto, LLC	Off calendar.
12	Oh v. Giving Tree Lending	Plaintiff April Oh moves for order compelling Defendant Giving Tree Lending to comply with this court’s October 24, 2024 order and awarding monetary sanctions against Defendant and its attorneys. For the following reasons, the motion is GRANTED. The court may impose monetary sanctions on any party engaging in the misuse of the discovery process, including the reasonable costs and fees incurred as a result of the failure to obey (including fees on the sanctions motion). (See Code Civ. Proc., § 2023.030(a).) Disobeying a court order to provide discovery is a misuse of the discovery process. (Code Civ. Proc., § 2023.010(g); <i>Van Sickle v. Gilbert</i> (2011) 196 Cal.App.4th 1495, 1516.) Once a party is ordered by the court to

		provide responses to discovery, continued failure to respond may result in the imposition of more severe sanctions. (See, e.g., Code Civ. Proc., § 2030.290(c).) Imposition of sanctions for misuse of discovery lies within the trial court's discretion. (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 991.) "[T]he court may not impose sanctions which are designed not to accomplish the objects of the discovery but to impose punishment." (<i>Electronic Funds Solutions v. Murphy</i> (2005) 134 Cal.App.4th 1161, 1183.) The trial court tailors the sanction for such conduct to "fit the crime." (<i>Reedy v. Bussell</i> (2007) 148 Cal.App.4th 1272, 1293.) The burden of proof is on the moving party to establish the facts essential to an award of sanctions. (Evid. Code, § 500 [providing "a party has the burden of proof as to each fact the existence or nonexistence of which is essential to the claim for relief or defense that he is asserting"]; see also Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (Rutter Group 2022) ¶ 8:2015.) Thereafter, the burden of proof shifts to the party seeking to avoid sanctions to establish a satisfactory excuse for his or her conduct. (<i>Corns v. Miller</i> (1986) 181 Cal.App.3d 195, 201; <i>Puritan Ins. Co. v. Superior Court</i> (1985) 171 Cal.App.3d 877, 884.) On October 24, 2024, this court ordered Defendant The Giving Tree Lending within 10 days to serve further responses without objection to: - Form Interrogatories-General (Set One) Nos. 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, 3.7, 4.1, 4.2, 12.1, 12.2, 12.3, 12.4, 12.6, 13.1, 13.2, 14.1, 14.2, 15.1, 16.1, 16.2, and 17.1; - Form Interrogatories-Employment (Set One) Nos. 200.1, 200.2, 200.3, 200.4, 200.5, 200.6, 201.1, 201.2, 201.4, 201.5, 201.6, 204.3, 204.4, 204.5, 204.6, 204.7, 207.1, 207.2, 209.2, 211.1, 214.1, 214.2, 215.1, 215.2, 216.1, and 217.1; - Special Interrogatories (Set One) Nos. 1-15; and - RFA Nos. 1-2. (ROA # 109.) Plaintiff contends Defendant failed to comply with the court order by failing to serve any further responses by the court-ordered deadline and by serving responses that are in bad faith and/or included boilerplate objections. Specifically, Plaintiff contends Defendant in bad faith responded with "I don't know" in response to Form Interrogatory Nos. 1.1, 3.1, 3.2, 3.3, 3.4, 3.5, 3.6, and 3.7; and inserted boilerplate objections in response to Form Interrogatory Nos. 12.1, 12.2, 12.3, 12.4, 12.5, 12.6, 12.7, 13.1, 13.2, 14.1, 14.2, and 15.1. Here, it is undisputed Defendant did not timely serve responses by the court's deadline. (Choi Decl. ¶ 4; see <i>generally</i> Opp.) Plaintiff communicated with Defendant on multiple occasions in November 2024, following up on the status of the further responses. (See Choi Decl. ¶¶ 4-7.) Defendant served further responses on December 9, 2024, a month after the court-ordered deadline had passed. (Choi Decl. ¶ 7.) The court finds Plaintiff is entitled to recover attorney fees to reasonably compensate her for fees incurred to ensure receipt the court-ordered
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